

communication under Art. 94(3) EPC fell within the discretion available to it, and its exercise of that discretion had not been flawed.

2.4. Amendments under Rule 137(3) EPC

Under Art. 123(1) EPC, a European patent application or a European patent may be amended in proceedings before the EPO, in accordance with the Implementing Regulations.

Before receiving the European search report, the applicant may not amend the description, claims or drawings of a European patent application unless otherwise provided (R. 137(1) EPC). Together with any comments, corrections or amendments made in response to communications by the European Patent Office under R. 70a(1) or (2), or R. 161(1) EPC, the applicant may amend the description, claims and drawings of his own volition (R. 137(2) EPC).

R. 137(3) EPC stipulates that no further amendment may be made without the consent of the examining division.

2.4.1 Discretion of the examining division under Rule 137(3) EPC

The discretion given to the examining division under R. 137(3) EPC is intended to ensure that the examination procedure is brought to a conclusion in as few actions as possible. In exercising its discretion the examining division must consider all relevant factors; in particular, it must balance the applicant's interest in obtaining a patent which is legally valid and the EPO's interest in bringing the examination procedure to a close in an effective way possible (Guidelines C-IV, 3; H-II, 2.3 – March 2022 version). In giving or withholding such consent, the examining division has to exercise its discretion responsibly and in accordance with the principles as set out in G 7/93 (OJ 1994, 775) which, although made in relation to amendments made in the pre-grant stage, can be considered generally applicable to new requests put forward at a late stage of the proceedings (see T 1064/04). Furthermore, the exercise of discretion under R. 137(3) EPC needs to be reasoned (see e.g. T 182/88, OJ 1990, 287; T 183/89; T 755/96, OJ 2000, 174).

In G 7/93 the Enlarged Board pointed out that in the exercise of its discretion under R. 86(3) EPC 1973 (now R. 137(3) EPC), an examining division was required to consider all relevant factors which arise in a case. In particular, it must consider both the applicant's interest in obtaining a patent which is legally valid in all of the designated states, and the EPO's interest in bringing the examination procedure to a close by the issue of a decision to grant the patent, and must balance these interests against one another (see also T 1982/07). Once an examining division has exercised such discretion, a board of appeal should only overrule it if it comes to the conclusion either that the examining division did not exercise its discretion in accordance with the right principles or that it exercised its discretion in an unreasonable way and had thus exceeded the proper limit of its discretion (see T 237/96 with particular reference to G 7/93, OJ 1994, 775; T 182/88, OJ 1990, 287; see also T 937/09, T 1214/09, T 918/14).

In T.573/12 the board noted that, as set out in G.7/93 (OJ 1994, 775), an examining division, when considering whether to admit an amendment or not, is required to consider all relevant factors which arise in the case. In particular it must consider and balance the applicant's interest in obtaining a patent and the EPO's interest in bringing the examination procedure to a close. In the case in hand, the examining division's first communication was rather vague and assessed the invention in rather general terms, without analysing the individual features. The appellant's subsequent amendment added some features to the independent claims. In the board's judgment, this was a bona fide reaction. Additionally, it was the first amendment which was dependent on the examining division's consent and the minutes showed that the examining division could and did discuss the added features. Admitting the request would not have involved excessive or unjustified additional work. Furthermore, the Guidelines (Part C-VI, 4.7 – April 2010 version) stated: "Regarding less extensive amendments, the examiner should adopt a reasonable approach, trying to balance fairness to the applicant against the need to avoid unnecessary delay and excessive and unjustified additional work for the EPO." Given the above circumstances, the board held that the examining division did not properly balance all relevant factors and thus could not endorse the examining division's conduct.

In T.1045/18 the board reiterated that an examining division had to take all relevant factors into account when exercising its discretion under R.137(3) EPC; in particular, it had to strike a balance between the applicant's legitimate interest in obtaining a European patent and the EPO's interest in conducting the examination proceedings efficiently. The relevant factors included the stage reached in the proceedings and whether the applicant had already had sufficient opportunity to amend the application. Another important factor to be considered was the extent to which the amendments were suitable to overcome an existing objection and did not manifestly – i.e. unequivocally and in an immediately apparent way – give rise to new ones. Clear or prima facie allowability was at most a criterion for the admissibility of late-filed amendments (Guidelines H-II, 2.7.1) whereas the amended claim set at issue in this case had been filed within the period set under R.116(2) EPC (see also T.222/21).

In T.937/09 the board stated that a proper exercise of the examining division's discretion under R.137(3) EPC as to whether to admit amendments to a European patent application after the first communication meant, in its view, that the examining division had to admit amendments filed by the applicant together with the reply to a communication giving reasoned notice of a particular deficiency for the first time, if it could already have raised an objection to that deficiency in its first communication, and if the amendments could be regarded as an objectively suitable attempt to correct the deficiency.

In T.166/86 (OJ 1987, 372) the board held that the examining division would not be able to refuse its consent to an amendment if, for good reasons, the applicant was only at that late stage in a position to request the amendment, or if the requested amendment was obviously essential for him and to take it into account would not appreciably delay the grant procedure.

In T.229/93 the board found that in the circumstances of the case the examining division should have considered refusing to consent to the amendments pursuant to

R. 86(3) EPC 1973, since the filing of such amendments after the expiry of the time limit for answering the first communication of the examining division in the form of a completely retyped description was contrary to the requirement of procedural economy (see T 113/92).

In T 951/97 (OJ 1998, 440) the board held that it was easier to secure an amendment at an earlier rather than at a later stage of the procedure. See also T 76/89, T 529/94, T 937/07. For instance, the board in T 674/17 exercised its discretion not to admit the new main request into the proceedings, in accordance with R. 137(3) and 100(1) EPC, since the new main request (submitted only after the board had sent a communication under Art. 15(1) RPBA 2007) amounted to the presentation of a fresh case.

In T 2324/14 the examining division had found that the auxiliary request "prima facie [did] not overcome the objections under Art. 84 EPC and Art. 83 EPC", and thus it did not give its consent under R. 137(3) EPC to it. The board noted that the EPC does not define what it means for an examining division to give or deny its consent to an amendment under R. 137(3) EPC. The boards of appeal had, however, accepted that the examining division could base its decision to deny consent to an amendment on prima facie considerations and that it could deny its consent to an amendment with prima facie deficiencies. However, the examining division had not limited its examination of the auxiliary request to prima facie considerations. In fact, the examining division had considered the auxiliary request fully, since it was able to give sufficient reasons for its conclusion that a patent could not be granted on the basis of that request. The examining division thus having considered the auxiliary request fully, the board took the view that there was no discretion left for the examining division "not to admit" it. In T 2026/15 the board confirmed these findings, adding that this meant that the examining division had implicitly admitted the auxiliary request and, equivalently, had given its consent under R. 137(3) EPC.

In T 1105/96 (OJ 1998, 249) the board noted that where an examining division had indicated that a further request in the form of an amended text for the main claim of an application would be allowable, it was difficult to imagine any circumstances in which it would be lawful for the examining division to deny the admissibility of such request, in the exercise of its discretion. Certainly, in the circumstances of the case in hand, the rejection in advance of such a further auxiliary request unless all preceding requests were abandoned was an abuse of procedure, an unlawful exercise of discretion under R. 86(3) EPC 1973 and thus a substantial procedural violation.

In T 2558/18, the board dealt with the binding effect on an examining division of a remittal with precisely specified documents for the purposes of R. 71(3) EPC. It observed that, under Art. 111(1), second sentence, EPC, the boards could either exercise any power within the competence of the department responsible for the decision appealed (alternative 1) or remit the case to that department for further prosecution (alternative 2). It summed the situation up as follows in its catchword: Where a board remits a case to the examining division for the grant of a patent in a precisely specified version, i.e. with precisely specified claims, description and drawings, the decision on this version is taken by virtue of the first alternative in Art. 111(1), second sentence, EPC. The version is binding on the examining division in accordance with the legal principle enshrined in

Art. 111(2) EPC (res judicata), on the basis of which the remittal is also ordered. The procedure under R. 71(6) EPC is inapplicable in view of the binding effect arising from Art. 111(2) EPC by virtue of Art. 164(2) EPC. See chapter V.A.10.2.1 "Binding effect on examining divisions".

2.4.2 Consent under Rule 137(3) EPC in oral proceedings

R. 116(2) EPC supplements R. 137(3) EPC with a special provision on amendments to the application where oral proceedings are to be held, under which the examining division has discretion to disregard such amendments if they are not filed before the date fixed in the summons to such proceedings. However, whilst meeting the time limit for filing further requests for amendments to the application fixed in the summons under R. 116 EPC does not render R. 137(3) EPC inapplicable, requests filed by that time limit can only be refused under R. 137(3) EPC in a proper exercise of discretion (T 937/09, T 2294/12).

2.4.3 The burden of proposing amendments

In T 300/89 (OJ 1991, 480) the board pointed out that, even if it were possible for the examiner to envisage amendments which might lead to the grant of a patent, the burden lay with the applicant to propose amendments if he so wished (including various alternatives in the form of auxiliary requests). These amendments could be proposed in the applicant's observations in reply to the first communication (Art. 96(2) EPC 1973) from the examining division, where any objections were raised (see also T 599/92).

In T 301/10 the board stated that it was incumbent upon the appellant to maintain unamended or to amend – optionally on an auxiliary basis – the application documents upon which examination was to be carried out and a decision eventually to be reached (Art. 94 and 97 EPC together with Art. 113(2) EPC 1973) (see T 300/89), and not upon the examining division to prolong the examination procedure beyond the procedural framework set out in the EPC (see in this respect Art. 123(1) EPC together with R. 86(3) EPC 1973) until the applicant opts for amending the application and eventually "exhausts" all possibilities for amendment, as this would seriously undermine the principle of procedural economy.

2.4.4 Converging or diverging versions of claims

In T 2680/18 the board noted that in principle, the convergence of a plurality of requests may be taken into account when deciding on the admissibility of requests based on R. 137(3) EPC. What mattered was the 'convergence' or 'divergence' of the claim versions, i.e. whether they further developed the subject-matter of the independent claim of the main request by progressively limiting it in one direction or in the direction of one inventive idea, respectively, or whether they develop it along various directions by incorporating different features.

In T 1074/10 the board noted that the convergence criterion (i.e. whether the respective versions of the sets of claims converge or diverge) had been accepted and also applied by the boards of appeal themselves (see e.g. T 240/04, T 1685/07, T 1969/08). The board

observed that R. 86(3) EPC 1973 (R. 137(3) EPC) left open entirely how the examining division should exercise its discretion and in particular, neither defined a convergence criterion nor a criterion based on prima facie compliance with the requirements of the EPC. The board was of the opinion that the "divergence" of a request from earlier requests in the sense that it changed substantially the issues at stake could be contrary to the EPO's interest in bringing the procedure to a close. Therefore, the board agreed with the cited case law and considered that divergence of a request was one factor amongst others which a deciding instance may consider when exercising its discretion under R. 86(3) EPC 1973. The decision of the examining division not to admit a request was therefore not wrong merely because this criterion was used.

In T 996/12 the board stated that, in general terms, the way in which the examining division should exercise its discretion to allow amendment of an application depended upon the circumstances of each individual case and on the stage of the pre-grant procedure which the application had reached. The board noted that the applicable Guidelines did not support the concept of converging claim sets being a requirement for allowing amendments or, conversely, a diverging claim set not being acceptable. The examining division referred to two board of appeal decisions, T 1685/07 and T 745/03, for this criterion. Apart from the fact that these decisions apply particularly to the situation where a patent proprietor submits a plurality of auxiliary requests in addition to a main request in opposition appeal proceedings, it needed to be stressed that its underlining justification was to be found in the efficiency of these appeal proceedings, the latter being of a judicial nature in contrast to the purely administrative character of the proceedings before, for instance the examining division or the opposition division. The board found that this fundamental distinction eo ipso made the unqualified application of this criterion by the department of first instance of the EPO questionable.

2.4.5 Reasons for the exercise of discretion

In T 182/88 (OJ 1990, 287) and T 166/86 (OJ 1987, 372) the boards decided that a separate set of claims submitted at a late stage in the proceedings was admissible under the particular circumstances. They added that the EPO's user-friendly reputation should clearly be excluded from consideration during the exercise of any discretion by the EPO. The showing of consideration towards parties before the EPO should not be confused with the proper exercise of discretion according to the law. It was also held that when a decision hinged on the exercise of discretion, the reasons should be given (see also T 183/89; T 755/96, OJ 2000, 174).

In T 309/09 the board doubted that the number of auxiliary requests could generally be considered a factor on the basis of which their admission under R. 137(3) EPC could properly be denied outright. Whilst it did not wish to rule out that a large number of auxiliary requests might be a sufficient reason in specific cases, it decided that the question could be left unanswered in the case in hand, as in any event six auxiliary requests could not automatically be considered excessive. Nor did it have to consider whether a lack of convergence among the requests was relevant in this connection, because the contested decision did not contain any explicit analysis of specific cases which might support such a conclusion, even though any convergence criterion applied would at any rate have had to